

23STCV30170 23STCV30170

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Tentative Ruling

Espinoza v. Macy's West Stores,

Case no. 23STCV30170

Hearing date September 23, 2026

Defendants'

Motion for Summary Judgment - UNOPPOSED

Plaintiffs

E. and L. Espinoza sue defendants Macy's Retail Holdings, LLC, erroneously sued as Macy's West Stores, Eagle Rock Plaza Owner LLC, Scarlata and Garcia for assault and battery, alleging they were assaulted by Scarlata while he was working as a security guard for defendants Macy's and Garcia. Defendants Macy's, Garcia and Scarlata move for summary judgment. The motion is unopposed.

A

motion for summary judgement must be granted if no triable issue of material fact exists as to each cause of action. Code Civ. Proc. §437c(a), (c); Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843. To obtain summary judgment, moving party must prove each element of the cause of action. Harris v. Rudin, Richman & Appel (2002) 95 Cal.App.4th 1332, as modified Mar. 5, 2002. A defendant can do so by showing plaintiff cannot establish one or more elements of the claim or there is a complete defense to that claim. Aguilar, supra, at 853. Once moving party meets this burden, the burden shifts to responding party to show a triable issue of material fact as to that cause of action or a defense thereto. Harris, supra, at 1337.

Plaintiffs allege assault, battery and intentional infliction of emotional distress against Scarlata, who is alleged to have physically attacked and assaulted plaintiffs as they attempted to leave the premises. Compl., paras. 4, 8, 13.

"The essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm." *So v. Shin* (2013) 212 Cal.App.4th 652, 668-669; CACI 1301.

The elements of civil battery are: (1) defendant intentionally performed an act that resulted in a harmful or offensive contact with plaintiff; (2) plaintiff did not consent to the contact; and (3) damages. *Brown v. Ransweiler* (2009) 171 Cal.App.4th 516.

The elements of a claim for intentional infliction of emotional distress are: (1) extreme and outrageous conduct by defendant with intent to cause, or reckless disregard of the probability of causing, emotional distress; (2) severe or extreme emotional distress; and (3) causation. *Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050-1051.

Plaintiffs allege negligence against all defendants, alleging breach of duty to protect them from physical harm while on their premises. Compl., paras. 32-39. The elements of negligence are: "the existence of a legal duty of care, breach of that duty, and proximate cause resulting in injury." *Castellon v. U.S. Bancorp* (2013) 220 Cal.App.4th 994, 998.

Plaintiffs allege negligent hiring, supervision and retention against Macy's and Garcia, arguing Macy's and Garcia knew, or should have known, that Scarlata was incompetent and unfit for his position;

his unfitness created a risk to others; and harm. Compl., paras. 40-44. "An employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee." Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054. To establish a cause of action for negligent hiring, retention, or supervision, plaintiff must show the employer knew or should have known that hiring the employee created a particular risk and that particular harm occurred. Z.V. v. County of Riverside (2015) 238 Cal.App.4th 889, 902

Defendants

argue plaintiffs cannot prevail against Scarlata because plaintiffs were attempting to steal from the store when the alleged altercation occurred. "Any necessary force may be used to protect from wrongful injury the person or property of oneself, or of a spouse, child, parent, or other relative, or member of one's family, or of a ward, servant, master, or guest." Civ. Code §50. An agent may use such force as is necessary to resist anyone who actually threatens the safety or the liberty or the property of his principal, without incurring liability for his acts. Haworth v. Elliott (1944) 67 Cal.App.2d 77, 82. Further, a "merchant may detain a person for a reasonable time for the purpose of conducting an investigation in a reasonable manner whenever the merchant has probable cause to believe the person to be detained is attempting to unlawfully take or has unlawfully taken merchandise from the merchant's premises" and may use reasonable, nondeadly force to do so. Pen. Code §490.5(f)(1)-(2).

On

12/12/21 Scarlata was employed by Macy's as a Multi-Store Asset Protection Manager. SSMF 1. On 12/12/21 Garcia was employed by Macy's as an Asset Protection Captain. SSMF 2. Garcia is not and has never been the employer of Scarlata. SSMF 3. On 12/12/21 Garcia and Scarlata were working at the premises when they observed plaintiffs attempting to leave without paying for merchandise. SSMF 4-6.

E.

Espinoza exited the store carrying various merchandise. SSMF 7. Garcia approached E. Espinoza outside the store, attempting to recover the stolen merchandise. SSMF 8. Garcia identified himself as Macy's agent and advised E. Espinoza she needed to return the merchandise. SSMF 9. Because E. Espinoza refused to return the merchandise, Garcia attempted to retrieve it from her and knocked the merchandise out of her hands, causing it to fall to the ground.

SSMF 10.

L.

Espinoza approached the store exit carrying unpaid merchandise. SSMF 11. Scarlata began speaking to L. Espinoza, identified himself as a Macy's agent, and told L. Espinoza he needed to pay for the merchandise. SSMF 12-13. L. Espinoza attempted to rush past Scarlata and exit the store without paying. SSMF 14. Scarlata knocked the unpaid merchandise from L. Espinoza's hands as he exited the store. SSMF 15.

A

scuffle ensued, and Garcia attempted to restrain E. Espinoza; L. Espinoza pushed Garcia to the ground, and Scarlata attempted to intervene. SSMF 16-19. Scarlata and Garcia told plaintiffs to leave; plaintiffs refused. L. Espinoza made threats against Scarlata and Garcia and attempted to punch Scarlata. SSMF 21-23. E. Espinoza pepper-sprayed Scarlata and Garcia, and L. Espinoza hit Garcia with a caution sign. SSMF 27-29. Scarlata never came into physical contact with E. Espinoza. SSMF 32. Other than knocking merchandise out of L. Espinoza's hands, Scarlata did not come into physical contact with L. Espinoza. SSMF 33.

The

undisputed facts show plaintiffs were attempting to steal merchandise, and Garcia and Scarlata, agents of Macy's, were acting within their authority to prevent the theft. See Pen. Code §490.5(f)(1)-(2). The undisputed evidence shows neither Garcia nor Scarlata used unreasonable or deadly force when attempting to prevent the theft and detain E. Espinoza. Undisputed facts show Scarlata made no physical contact with E. Espinoza and made only minimal, non-offensive contact with L. Espinoza. Undisputed evidence shows Garcia never functioned as Scarlata's employer, so cannot be liable for negligent hiring. This is sufficient to shift the burden to plaintiffs to show triable issue of fact the elements of all causes of action brought against moving defendants. As plaintiffs failed to oppose or proffer evidence, they cannot meet their burden. GRANTED.